

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4301

By: Blair

COMMITTEE SUBSTITUTE

An Act relating to protection of veterans; requiring Attorney General to enforce provisions of federal law related to payments made to escrow or title companies in certain real estate transactions; providing for civil penalty; amending 74 O.S. 2021, Section 19.1, which relates to the Attorney General Law Enforcement Revolving Fund; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 451 of Title 72, unless there is created a duplication in numbering, reads as follows:

A. The Attorney General shall enforce the requirements of 38 C.F.R. Section 36.4303(k) or any other federal law or rule that requires earnest money paid by a qualified United States veteran or active duty military to an escrow company or title company or other entity acting in such capacity to be returned if the value of the property appraises for less than the contract price.

1 B. Any person or entity violating the requirements of federal
2 law as described in subsection A of this section shall pay a civil
3 penalty of Five Hundred Dollars (\$500.00) per occurrence. The
4 proceeds from the penalty shall be apportioned to the Attorney
5 General's Law Enforcement Revolving Fund.

6 SECTION 2. AMENDATORY 74 O.S. 2021, Section 19.1, is
7 amended to read as follows:

8 Section 19.1. There is hereby created in the State Treasury a
9 revolving fund for the Office of the Attorney General to be
10 designated the "Attorney General's Law Enforcement Revolving Fund".
11 The fund shall be a continuing fund, not subject to fiscal year
12 limitations, and shall consist of any monies received from the sale
13 of confiscated property, the seizure and forfeiture of confiscated
14 monies, property, gifts, bequests, revises or contributions, public
15 or private, including federal funds unless otherwise provided by
16 federal law or regulation and the civil penalty amount imposed
17 pursuant to Section 1 of this act. All monies accruing to the
18 credit of said fund are hereby appropriated and may be budgeted and
19 expended by the Attorney General for the purposes of investigation,
20 enforcement and prosecution of cases involving criminal and
21 forfeiture laws of this state and the United States of America or to
22 match federal grants. Expenditures from said fund shall be made
23 upon warrants issued by the State Treasurer against claims filed as
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1 prescribed by law with the Director of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 3. This act shall become effective November 1, 2026.
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